

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

----- X
WANDA TORRES, BRIE TORRES, TYRIN
TORRES, QUINTIN TORRES, TIFFANY
VASQUEZ, and NIGHIA TORRES,

Plaintiff,

-against-

**FIRST AMENDED
COMPLAINT**

Jury Trial Demanded

12-CV-6042 (JBW)(CLP)

CITY OF NEW YORK; DETECTIVE WILSON
SAGARDIA, Shield No. 05062, SERGEANT
CASANDRA WHITAKER Shield No. 04054,
DETECTIVE ESSENCE JACKSON, Shield No.
10238, DETECTIVE IDRIS MOJEED, Shield No.
Shield No. 02339, CAPTAIN NATALIE
MALDONADO, Tax No. 916115, DETECTIVE
PAUL FARELLA, Shield No. 00193,
DETECTIVE ISAAC SHANNON, Shield 03188,
POLICE OFFICER DUDLEY EWALD, Shield
No. 17310, DETECTIVE ANTHONY MAIDA,
Shield No. 12539, POLICE OFFICER MARK
SCARLATELLI, Shield No. 09053, DETECTIVE
RENE SAMANIEGO, Shield No. 04703,
DETECTIVE JOHN FERNANDEZ, Shield No,
00175, POLICE OFFICER MICHAEL
MALDONADO, Shield No. Shield No. 23573,
JOHN and JANE DOE 1 through 10, individually
and in their official capacities (the names John and
Jane Doe being fictitious, as the true names are
presently unknown),

Defendants.

----- X
NATURE OF THE ACTION

1. This is an action to recover money damages arising out of the violation
of plaintiff's rights under the Constitution.

JURISDICTION AND VENUE

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the Fourth and Fourteenth Amendments to the Constitution of the United States.

3. The jurisdiction of this Court is predicated upon 28 U.S.C. §§ 1331, 1343 and 1367(a).

4. Venue is proper in this district pursuant to 28 U.S.C. §§ 1391 (b) and (c).

JURY DEMAND

5. Plaintiff demands a trial by jury in this action.

PARTIES

6. Plaintiffs Wanda Torres, Brie Torres, Tiffany Vasquez, Quinton Torres, Tyrin Torres and Nighia Torres (“plaintiffs” or “the Torres Family”) are residents of Kings County in the City and State of New York.

7. Defendant City of New York is a municipal corporation organized under the laws of the State of New York. It operates the NYPD, a department or agency of defendant City of New York responsible for the appointment, training, supervision, promotion and discipline of police officers and supervisory police officers, including the individually named defendants herein.

8. Defendant Police Officer Wilson Sagardia, Shield No. 050622 (“Sagardia”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Sagardia is sued in his individual and official capacities.

9. Defendant Sergeant Casandra Whitaker, Shield No. 04054 (“Whitaker”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Whitaker is sued in her individual and official capacities.

10. Defendant Detective Essence Jackson, Shield No. 10238 (“Jackson”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Jackson is sued in her individual and official capacities.

11. Defendant Detective Idris Mojeed, Shield No. 02339 (“Mojeed”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Mojeed is sued in his individual and official capacities.

12. Defendant Captain Natalie Maldonado, Tax No. 916115 (“N. Maldonado”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant N. Maldonado is sued in her individual and official capacities.

13. Defendant Detective Paul Farella, Shield No. 00193 (“Farella”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Farella is sued in his individual and official capacities.

14. Defendant Detective Isaac Shannon, Shield No. 3188 (“Shannon”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Shannon is sued in his individual and official capacities.

15. Defendant Police Officer Dudley Ewald, Shield No. 17310 (“Ewald”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Ewald is sued in his individual and official capacities.

16. Defendant Detective Anthony Maida, Shield No. 12539 (“Maida”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Maida is sued in his individual and official capacities.

17. Defendant Police Officer Mark Scarlatelli, Shield No. 09053 (“Scarlatelli”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Scarlatelli is sued in his individual and official capacities.

18. Defendant Detective Rene Samaniego, Shield No. 4703 (“Samaniego”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Samaniego is sued in her individual and official capacities.

19. Defendant John Fernandez, Shield No. 00175 (“Fernandez”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Fernandez is sued in his individual and official capacities.

20. Defendant Police Officer Michael Maldonado, Shield No. 23573 (“M. Maldonado”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant M. Maldonado is sued in his individual and official capacities.

21. At all times relevant defendants John and Jane Doe 1 through 10 were police officers, detectives or supervisors employed by the NYPD. Plaintiff does not know the real names and shield numbers of defendants John and Jane Doe 1 through 10.

22. At all times relevant herein, defendants John and Jane Doe 1 through 10 were acting as agents, servants and employees of defendant City of New York and the NYPD. Defendants John and Jane Doe 1 through 10 are sued in their individual and official capacities.

23. At all times relevant herein, all individual defendants were acting under color of state law.

STATEMENT OF FACTS

24. The Torres family lives in a five bedroom, two-story apartment in located at 2750 West 33rd Street, apt. 2347, Brooklyn, New York.

25. On July 14, 2012, Wanda Torres, a forty-eight year-old woman, with no prior arrests was sleeping in the upstairs in the family living room. Wanda is the mother of Quentin, Tyrin and Nighia.

26. In an upstairs bedroom Harry, Brie and Tyrin slept. Downstairs Nighia and her one-year old son Noah slept in one-bedroom, while Quinton, Tiffany and

their one-year old son Ryan slept in another.

27. At approximately 6:30 a.m. on July 14, 2012, the defendants, dressed in riot gear, forcibly entered the Torres home under the guise of an alleged search warrant.

28. Despite the fact that plaintiffs requested to see a search warrant on several occasions, defendants refused to do so.

29. Defendants charged into plaintiffs' bedrooms and started screaming at plaintiffs and pointing guns in their faces. Defendants then handcuffed plaintiffs and placed plaintiffs in the living room while police ransacked their home leaving it in complete disarray.

30. The Plaintiffs, in handcuffs, were forcibly removed from their residence and taken to a police van; in full view of their long-time neighbors.

31. Defendants never informed plaintiffs why they were being arrested.

32. The officers transported plaintiffs to the 60th precinct where they were placed in police cells.

33. Subsequent to arresting plaintiffs, defendants continued to search the Torres residence.

34. The only contraband recovered was a small amount of "personal use" marijuana found within sealed travel bag.

35. Non-party, Harry Torres, informed the defendant police officers that the

marijuana recovered was his.

36. Notwithstanding the fact that plaintiffs did not actually possess, or could not legally constructively possess the marijuana, they were all issued summons for possession of marijuana.

37. Ultimately, plaintiffs were issued summonses and released.

38. On October 11, 2012, all charges against plaintiffs were dismissed.

39. Plaintiffs suffered damage as a result of defendants' actions. Plaintiffs were deprived of their liberty, suffered emotional distress, mental anguish, fear, pain, bodily injury, anxiety, embarrassment, humiliation, and damage to their reputation.

FIRST CLAIM
42 U.S.C. § 1983

40. Plaintiffs repeat and re-allege each and every allegation as if fully set forth herein.

41. Defendants, by their conduct toward plaintiffs alleged herein, violated plaintiffs' rights guaranteed by 42 U.S.C. § 1983, the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

42. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SECOND CLAIM
Unlawful Entry and Search

43. Plaintiffs repeat and re-allege each and every allegation as if fully set forth herein.

44. Defendants violated the Fourth and Fourteenth Amendments because they unlawfully entered and search plaintiffs' home.

45. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

THIRD CLAIM

False Arrest

46. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

47. Defendants violated the Fourth and Fourteenth Amendments because they arrested plaintiff without probable cause.

48. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CLAIM

Unreasonable Force

49. Plaintiffs repeats and realleges each and every allegation as if fully set forth herein.

50. The defendants violated the Fourth and Fourteenth Amendments because they used unreasonable force on plaintiffs.

51. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FIFTH CLAIM

Malicious Prosecution

40. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

41. By their conduct, as described herein, and acting under color of state law, defendants are liable to plaintiff under 42 U.S.C. § 1983 for the violation of his constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.

42. Defendants' unlawful actions were done willfully, knowingly, with malice and with the specific intent to deprive plaintiff of his constitutional rights. The prosecution by defendants of plaintiff constituted malicious prosecution in that there was no basis for the plaintiff's arrest, yet defendants continued with the prosecution, which was resolved in plaintiff's favor.

43. As a direct and proximate result of defendants' unlawful actions, plaintiffs have suffered, and will continue to suffer, damages, including physical, mental and emotional injury and pain, mental anguish, suffering, humiliation, embarrassment and loss of reputation.

44. As a direct and proximate result of defendants' unlawful actions, plaintiffs have suffered, and will continue to suffer, damages, including physical, mental and emotional injury and pain, mental anguish, suffering, humiliation, embarrassment and loss of reputation.

SIXTH CLAIM

Failure To Intervene

45. Plaintiffs repeats and realleges each and every allegation as if fully set forth herein.

46. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

47. Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth And Fourteenth Amendments.

48. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

PRAYER FOR RELIEF

WHEREFORE, plaintiffs respectfully requests judgment against defendants as follows:

- (a) Compensatory damages against all defendants, jointly and severally;
- (b) Punitive damages against the individual defendants, jointly and severally;
- (c) Reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988; and
- (d) Such other and further relief as this Court deems just and proper.

DATED: April 19, 2013
New York, New York

/ss/
Robert Marinelli
299 Broadway, Suite 1501
New York, New York 10007
(212) 822-1427

Attorney for plaintiffs